



U.S. Department
of Transportation

Research and
Special Programs
Administration

FEB 11 1997

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11831

EXPIRATION DATE: March 31, 1997

1. GRANTEE: National Starch and Chemical Co.
Bridgewater, New Jersey
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time transportation in commerce of certain Class 3 materials in approximately 28 DOT Specification 57 portable tanks that were filled after the tanks' prescribed retest dates. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.32(e).
5. BASIS: This emergency exemption is based on the application of the National Starch and Chemical Company dated January 27, 1997, submitted in accordance with 49 CFR 107.117 and a determination that it is necessary to preclude a serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Adhesives	3	UN1133	II

7. PACKAGING AND SAFETY CONTROL MEASURES:
 - a. Packagings are DOT Specification 57 portable tanks that have not been retested by the date prescribed in 173.32(e).
 - b. Each tank must be visually inspected prior to transportation for any defect that would make the tank unsafe for transport. Only tanks certified by the shipper to be free of such defects are authorized for transportation under the terms of this exemption. Each tank must be retested in accordance with 49 CFR 173.32(e) prior to further use.

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8. SPECIAL PROVISIONS:

a. A motor carrier with a satisfactory safety record will be used to transport the materials from two separate locations (Newark, NJ and Rockford, IL) to the company's facilities in either Grand Rapids, MI, Meredosia, IL, or Forest City, IA, during the allotted time of this exemption.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. Each portable tank must be plainly marked on both sides near the middle, in letters and numerals at least two inches high on a contrasting background, "DOT-E 11831".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS:

A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

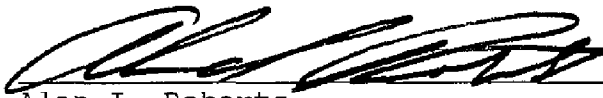
No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

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Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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